

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3131

By: West (Kevin)

AS INTRODUCED

An Act relating to public health and safety; defining terms; establishing a statewide continuum of care framework for homeless services; providing for oversight by the State Department of Health; requiring minimum public health and safety standards; requiring financial accountability, transparency, and aggregate reporting; providing for coordination with local public safety authorities; providing for local coordination by boards of county commissioners; providing complaint, enforcement, and appeal procedures; clarifying zoning authority; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1200 of Title 63, unless there is created a duplication in numbering, reads as follows:

As used in this act:

1. "Board of county commissioners" or "Board" means the governing board of a county, as provided by law;

1 2. "Continuum of care" means a coordinated system of homeless
2 services designed to provide emergency shelter, public health
3 service, transitional housing, permanent supporting housing, and
4 related support intended to reduce homelessness and improve health
5 and safety outcomes;

6 3. "Department" means the State Department of Health;

7 4. "Homeless service provider" means any public or private
8 entity, including a nonprofit or faith-based organization, that
9 operates an emergency shelter, transitional housing program, or
10 permanent supportive housing program and receives public funds; and

11 5. "Public funds" means any state, federal, or local funds,
12 including federal pass-through funds administered by the state or a
13 political subdivision.

14 SECTION 2. NEW LAW A new section of law to be codified
15 in the Oklahoma Statutes as Section 1201 of Title 63, unless there
16 is created a duplication in numbering, reads as follows:

17 A. There is hereby established a statewide continuum of care
18 for homeless services to be administered by the State Department of
19 Health.

20 B. Participation in the statewide continuum of care and
21 compliance with this act shall be a condition of receipt of public
22 funds by a homeless service provider.

1 SECTION 3. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 1202 of Title 63, unless there
3 is created a duplication in numbering, reads as follows:

4 The State Department of Health shall:

5 1. Adopt rules establishing minimum operational, public health,
6 safety, financial, and reporting standards for homeless service
7 providers receiving public funds;

8 2. Establish minimum public health and safety standards, which
9 may include sanitation, hygiene, communicable disease prevention,
10 overdose response preparedness, and emergency response coordination;

11 3. Establish financial audit and reporting thresholds by rule;

12 4. Maintain a statewide registry of homeless service providers
13 receiving public funds;

14 5. Receive and review compliance and aggregate data reports
15 from boards of county commissioners;

16 6. Publish an annual statewide report summarizing aggregate
17 funding, shelter capacity, services provided, and outcomes, which
18 shall not include personally identifiable client information; and

19 7. Take enforcement action as provided in this act.

20 SECTION 4. NEW LAW A new section of law to be codified
21 in the Oklahoma Statutes as Section 1203 of Title 63, unless there
22 is created a duplication in numbering, reads as follows:

1 A. Each board of county commissioners shall serve as the local
2 coordinating authority for homeless service providers operating
3 within the county and receiving public funds.

4 B. The board of county commissioners shall:

5 1. Maintain a registry of homeless service providers receiving
6 public funds within the county;

7 2. Verify provider compliance with financial audit and
8 reporting requirements established by the State Department of
9 Health;

10 3. Facilitate coordination between homeless service providers
11 and local law enforcement agencies, emergency medical services, fire
12 departments, and public health authorities;

13 4. Receive annual reports and aggregate data submissions from
14 providers as required by this act; and

15 5. Submit an annual compliance and aggregate data report to the
16 Department in a form prescribed by rule.

17 SECTION 5. NEW LAW A new section of law to be codified
18 in the Oklahoma Statutes as Section 1204 of Title 63, unless there
19 is created a duplication in numbering, reads as follows:

20 A. A homeless service provider receiving public funds shall
21 comply with financial audit, review, or disclosure requirements
22 established by the State Department of Health by rule, which may
23 include tiered requirements based on the amount of public funds
24 received.

1 B. Each provider shall submit required financial audits,
2 reviews, or disclosures to the board of county commissioners and the
3 Department within the timeframes established by rule.

4 C. Each provider shall prepare an annual report, to be made
5 available on a publicly accessible website or upon request,
6 summarizing:

- 7 1. Total public and private funding sources;
- 8 2. Expenditures by major category;
- 9 3. The number of individuals served; and
- 10 4. Aggregate service outcomes.

11 D. No report required under this section shall include
12 personally identifiable information of service recipients.

13 SECTION 6. NEW LAW A new section of law to be codified
14 in the Oklahoma Statutes as Section 1205 of Title 63, unless there
15 is created a duplication in numbering, reads as follows:

16 A. Homeless service providers receiving public funds shall
17 submit aggregate data, in a form prescribed by rule, regarding:

- 18 1. Authorized bed or unit capacity;
- 19 2. Average occupancy rates; and
- 20 3. Aggregate counts of significant incidents impacting public
21 health or safety.

22 B. Incident reporting under this section shall not include
23 personally identifiable information and shall be used solely for
24 public health planning and oversight purposes.

1 SECTION 7. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 1206 of Title 63, unless there
3 is created a duplication in numbering, reads as follows:

4 A. Each homeless service provider receiving public funds shall
5 designate a public safety and health liaison responsible for
6 communication with local law enforcement and emergency services.

7 B. Providers shall maintain written protocols for coordination
8 with local law enforcement agencies and emergency services regarding
9 emergency response, threats to public safety, and other
10 circumstances as defined by rule.

11 C. Nothing in this act shall be construed to:

12 1. Require a homeless service provider to perform law
13 enforcement functions;

14 2. Require disclosure of confidential client information except
15 as otherwise required by law; or

16 3. Authorize law enforcement agencies to control or manage the
17 internal operations of a provider.

18 SECTION 8. NEW LAW A new section of law to be codified
19 in the Oklahoma Statutes as Section 1207 of Title 63, unless there
20 is created a duplication in numbering, reads as follows:

21 A. The State Department of Health or board of county
22 commissioners shall establish a process to receive and investigate
23 complaints regarding compliance with this act.
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1 B. No homeless service provider shall retaliate against an
2 employee, volunteer, client, or other individual who submits a
3 complaint or cooperates with an investigation in good faith.

4 SECTION 9. NEW LAW A new section of law to be codified
5 in the Oklahoma Statutes as Section 1208 of Title 63, unless there
6 is created a duplication in numbering, reads as follows:

7 A. Upon a finding of noncompliance by a service provider, the
8 State Department of Health may require a corrective action plan.

9 B. For continued or material noncompliance, the Department may
10 suspend or withhold public funds or decertify a provider from
11 participation in the statewide continuum of care.

12 C. Any provider subject to enforcement action under this act
13 shall be entitled to an administrative appeal in accordance with the
14 Oklahoma Administrative Procedures Act.

15 D. Enforcement actions under this act shall be administrative
16 in nature. Nothing in this act shall create a private right of
17 action.

18 SECTION 10. NEW LAW A new section of law to be codified
19 in the Oklahoma Statutes as Section 1209 of Title 63, unless there
20 is created a duplication in numbering, reads as follows:

21 Nothing in this act shall be construed to supersede or preempt
22 local zoning, land use, or building authority, nor to require a
23 political subdivision to approve or site a homeless service
24 facility.

1 SECTION 11. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 1210 of Title 63, unless there
3 is created a duplication in numbering, reads as follows:

4 The State Department of Health shall promulgate rules necessary
5 to implement the provisions of this act.

6 SECTION 12. This act shall become effective November 1, 2026.

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